

		been resolved against the indemnitee, i.e., those as to which the indemnitee has actually sustained liability or paid damages.” (<i>Crawford, supra</i>, 44 Cal.4th at p. 509.) Moreover, there is a real risk of inconsistent rulings. For Lusardi to prevail on its indemnity claims, Defendants’ negligence must be the proximate cause of Owner’s damages. If this action weren’t stayed in favor of the arbitration, the arbitrator could find that Defendants’ negligence didn’t cause Owner’s damages, while this Court could simultaneously find Defendants’ negligence did. Such a result is to be avoided. However, Lusardi argues that the risk of inconsistent rulings can be avoided without a stay by postponing consideration of the merits of the indemnity claims until after the Arbitration concludes. The Court is inclined to agree, but believes consideration of the merits should be formally stayed rather than simply having a trial date pushed back. If a stay is informally accomplished by postponing the trial, there is a chance that summary judgment or adjudication rulings in this matter might conflict with rulings made in the Arbitration. Accordingly, the Court, in a discretionary exercise of its inherent authority, grants the motion as to Lusardi’s remaining claims. Lusardi argues that even if a stay on merits determinations is granted, the Court should allow discovery to proceed so as to avoid duplicative discovery taken in the arbitration proceeding. This request is denied. Allowing such discovery (often the most expensive aspect of any case) would effectively nullify one purpose of the stay—avoiding potentially unnecessary litigation expenses. If such discovery were allowed, MBO would be forced to participate in depositions and written discovery even if it later turns out that Lusardi succeeded in defending against the Owner’s claims. That said, if the Owner prevails in the Arbitration and the stay in this case is lifted, the Court expects the parties to work cooperatively on a discovery plan that allows discovery to proceed in an efficient manner, including what aspects of discovery taken in the Arbitration can be used in this litigation. Moreover, to the extent that discovery aimed at MBO is taken in the Arbitration, the Court expects the parties to cooperate regarding the use of that discovery in this litigation.
10	Legends Hospitality Wage and Hour Cases JCCP 5466	Motion for Coordination Scott Shuster, joined by Trinity Martinez and Demetrius Crook, petition for coordination of the following actions (“Included Actions”): 1. <i>Murchison v. MVP Productions, LLC</i>, Orange County Superior Court No. 21-01234789 2. <i>Martinez v. Legends Hospitality, LLC</i>, Orange County Superior Court No. 24-01380394 3. <i>Shuster v. Legends Hospitality, LLC</i>, Los Angeles County Superior Court No. 22STCV32193